



Quality Equipment & Parts
4894 NW US Highway 41 • Lake City, Florida 32055
Phone (386) 754-6186 • Fax (386) 754-6189
www.qepusa.com

DEVELON



Ship To: IN STORE PICKUP

Invoice To: SOUTHLAND CONTRACTING INC
1843 COMMERCE BLVD
MIDWAY FL 32343

Branch 01 - LAKE CITY *REPRINT*		
Date 05/15/2026	Time 14:29:00 (T)	Page 1
Account No ROWE009	Phone No 8502513080	Contract No R00265
Ship Via		Purchase Order
Tax ID No AG EXEMPT		877544
		Salesperson DK1

RENTAL AGREEMENT

Description INVOICE #: R00265 For Contract #: 000429 Amount

Billing #: 1 Covering From 05/13/2026 to 06/12/2026

BK 930B

Industrial Tractor Charge for usage of 1 MONTH 29500.00
Stock #: Q001759 Serial #: 12393024087
Date Out: 05/13/2026 08:00 Expected return date: 06/09/2026 08:00
Machine hours out: 1218
Rates: 9000.00/WEEKL 25000.00/MONTH
INSURANCE VALUE: \$505,000
SECURITY DEPOSIT: \$5,000
WEEKLY RENT: 7 DAYS / 40 HOURS MAX
MONTHLY RENT: 28 DAYS / 160 HOURS MAX
EXCESS HOURS OF USE CHARGED AT HOURLY RATE
SERVICE CHARGE FOR FUEL NOT REPLACED UPON RETURN: \$7.00 GAL.
CLEANING CHARGE FOR ITEMS RETURNED UNCLEAN: \$300.00

PR M650H-2350

Mulching Head Charge for usage of 1 MONTH
Stock #: Q001871 Serial #: 10654003
Date Out: 05/13/2026 08:00 Expected return date: 06/09/2026 08:00
Rates: 1500.00/WEEKL 4500.00/MONTH

Miscellaneous Charges/Credits

SECURITY DEPOSIT 5000 Qty: 1 Price: 5000.00 5000.00

Subtotal: 34500.00

SJ3315 IBS CHARGED SALE: 34500.00

INVOICE(S) ASSIGNED TO AND BILLED BY:

INTERSTATE BILLING SERVICE

MAKE CHECKS PAYABLE TO VENDOR & REMIT TO:

P.O. BOX 2208 DECATUR, AL 35609-2208

Our Limited Damage Waiver (LDW) fee is NON-REFUNDABLE, OPTIONAL AND MAY BE DECLINED ONLY IF YOU PROVIDE INSURANCE AS REQUIRED BY QEP. See Sections 11 and 12 on the reverse side/Page 2/Terms and Conditions of this Rental Contract. **IMPORTANT:** If you decline LDW or fail to pay the LDW Fee prior to commencement of the Rental Term, you will be responsible for all damage to the Rented Item(s), at the full (new) replacement cost thereof. Otherwise, you will be charged for LDW. **DECLINE LDW:** _____ (INITIALS OF CUSTOMER/LESSEE)
IMPORTANT: If you decline LDW, or if you fail to pay the Damage Waiver Fee prior to commencement of the Rental Term, you will be responsible for all damage to the Rented Item(s), at the full (new) replacement value thereof.
IMPORTANT WARNING: Failure to return rental property or equipment upon expiration of the rental period and failure to pay all amounts due (including costs for damage to the property or equipment) are evidence of abandonment or refusal to redeliver the property, punishable in accordance with section 812.155, Florida Statutes. **Lessee's initials:** _____
You agree to rent the above referenced Rented Items from Quality Equipment & Parts, Inc. a Florida corporation, d/b/a Quality Equipment & Parts" (also referred to herein as "QEP" "Lessor," "we," "us" and "our") on the terms set forth in this Contract (including this Page 1, and reverse side or Page 2 hereof). You, for yourself and for the Customer/Lessee acknowledge and agree that you have carefully reviewed, fully understand, and agree to all of the terms and conditions set forth in this Contract, that you have received a complete and legible copy of each of the same, together with all applicable Instructions and Warnings, and that **YOU PERSONALLY GUARANTEE** the full and prompt payment and performance of each and every obligation of the Customer / Lessee arising under and/or in connection with this Contract. You authorize QEP to charge all amounts due and coming due under this Rental Contract (up to 150% of the new replacement value of the item(s)) to any and all debit or credit card(s) you provide. All charges due and coming due hereunder are subject to **FINAL AUDIT** by QEP.

CUSTOMER/LESSEE SIGNATURE: _____

TERMS AND CONDITIONS OF RENTAL CONTRACT- QUALITY EQUIPMENT & PARTS

For good and valuable consideration, you and Quality Equipment & Parts, Inc., a Florida corporation, d/b/a

"Quality Equipment & Parts" (also referred to herein as "QEP," "Lessor," "we," "us" and "our") agree as follows:

1. As used herein, "P. 1" refers to the first page or "face" of this Contract; "Contract" refers to P. 1 together with these Terms and Conditions; "Rented Item(s)" or "Items" means the item(s) provided (rented or if specifically set forth on P.1, sold) to you, as identified on P. 1 (including any "Instructions" and/or safety devices provided per Section [or §] 5 below); "Site" means the address set forth on P. 1 where the Item(s) is/are to be delivered and/or used; and "Customer," "Lessee," "you" and "your" mean the "Renter," "Customer," "Lessee" and/or "Guarantor" (as applicable) identified on P.1.

2. You agree to rent from QEP the Rented Item(s) for the period(s) specified on P.1 (the "Term"), to pay us our stated rental rate(s) (the "Rent"), together with all other charges accruing hereunder, without proration, reduction or setoff, and to remain liable for all loss, theft, injuries and damages of, to, or associated with such Item(s), until all Rented Item(s) is/are returned to and accepted by QEP in the return condition required under this Contract (including § 10). Unless otherwise specifically agreed by QEP, all rental rates are for normal use of the Rented Item(s) on a single-shift basis during the Term, not exceeding 8 hours per 24-hour period for which Rent is charged hereunder (each, a "Rental Day"), 40 hours per 7-Rental Day period, 160 hours per 28-Rental Day period (zero hours for any and all uncharged-for periods), and in accordance with the terms of this Contract Additional Rent at our highest incremental rate will be charged for late returns and overuse. You will not be entitled to any cancellation right or reduction of Rent or other amounts coming due hereunder to account for time in transit, Acts) of God, event(s) of force majeure or any other period(s) of nonuse. We have estimated the Rent based on your estimate of the length of the Term (the "Estimated Rent"). Unless otherwise agreed by QEP in writing, you agree: (a) to pay us: (i) the Estimated Rent, and any required deposits specified on P.1 in advance of the Term (the "Prepayment"); and (ii) all other amounts coming due hereunder upon demand; and (b) that: (i) we may deduct any amounts) you owe us from any Prepayment; (ii) no interest will accrue on any Prepayment; (iii) no Prepayment will be deemed a limit of your liability to us; and (iv) all Prepayments are **NON-REFUNDABLE** Anything remaining with, in or on any Rented Item(s) upon return will, at our option, be deemed abandoned 3. If we agree to deliver and/or retrieve any Item(s), you agree to: (a) ensure the Site is reasonably clean, safe, secure and fit for delivery and use of the Item(s); (b) pay our regular charge(s) therefore, and for all waiting time; (c) be present at the Site at the agreed time(s); and (d) ensure our personnel have full access to the Site We will not be responsible for delays) caused by any acts or omissions of/b you, your agents, employees or contractors, or any other parties, including providers of other equipment or services (Other Providers") for which you agree to indemnify, defend, and hold harmless QEP, its agents, employees, and contractors. If you are not present upon delivery or retrieval of any Item(s), you agree to accept the statements of our representatives and/or delivery personnel regarding the same (including status, condition, quality, utility, defects, and quantities of or with respect to the Item(s) and the Site).

4. QEP owns and will retain title to all Rented Items at all times. You will have exclusive control over the Rented Item(s) during the Term; subject however, to your obligation to always fully and timely comply with this Contract. You SHALL NOT: (a) permit the taking or existence of any lien, claim, security interest or encumbrance on any Rented Item(s); (b) have any title or ownership interest in or with respect to any Rented Item(s); or (c) loan, share, transfer, sublease, store, surrender or assign any Rented Item(s) or this Contract, without our prior written consent (in our sole discretion). QEP may, from time to time, substitute Rented Item(s) and/or sell or assign all or any part of its interests in one or more Rented Item(s) and/or this Contract, in which event, you will attorn to the assignee, who will not be responsible for any pre-existing Options.

5. Upon the earlier of your receipt, or the delivery to the Site, of the Rented Item(s) unless you thereupon reject it/them, you represent, warrant, acknowledge and agree that: (a) each Item: (i) is complete and in good order, condition and repair, fully charged and/or fueled (as applicable); (ii) is appropriate for your purposes and in all ways acceptable to you; and (iii) was selected (not based on any recommendation by us), carefully examined, counted and tested by you or your agent(s); and (b) you: (i) have carefully reviewed and fully understand all laws, rules, regulations, training, instructions, user manuals, maintenance requirements, and other information, if any, including all EPA, OSHA, MSHA, ASME, IBC, IFC, IEEE, UL, ASSP, DOT, FMCSA, IFTA, ANSI and other standards, applicable to the Item(s) (collectively, "Instructions"); (ii) will fully comply therewith including Tier 4 Silica Dust, Ventilation, charging, fueling, cleaning, voltage, and site assessment requirements; iii) have been made aware of the need to use all applicable personal protective equipment and safety devices (**INCLUDING RESPIRATORY and FALL PROTECTION**); (iv) will use each Item only for its **intended purpose**, in a reasonable and safe manner; (v) will timely give all applicable notice(s) to, and obtain all applicable licenses, authorizations, permits and approvals from, all affected parties, including governmental authorities, utilities, cable companies and the owners) of the Site, and ensure that all underground lines, cables and conduits are clearly and properly marked before using any Item(s) to disturb the ground surface (**Call 811 and go to www.Call811.com at least 3 full business days in advance**); and (vi) will ensure that all others comply with this Contract at all times. You agree to notify the proper authorities and QEP in the event of any theft or accident involving any Rented Item(s), and QEP if any of the above requirements are breached or proven incorrect.

6. You agree to immediately cease using any Item that is damaged, breaks down, or proves defective (a "Malfunction"), and promptly notify, and return the Malfunctioning Item(s) to, QEP. Provided that such Malfunction did not result from or in connection with any wrongful or negligent act or omission of/b you, (or anyone you permit to use or otherwise deal with any Rented Item(s), or your breach of any provision of this Contract, we will, at our option: 0) repair the Malfunctioning Item; ii) provide a comparable item; or I) solely with respect to the Malfunctioning Item, return the unused portion of the Rent and cancel this Contract. **The foregoing remedies are EXCLUSIVE.** QEP shall have no other obligation(s) regarding Malfunctions, all of which you hereby waive, together with all incidental, consequential, and special damages.

7. NO WARRANTIES. QEP IS NOT THE MANUFACTURER OR DESIGNER OF ANY ITEMS, ALL OF WHICH ARE PROVIDED "AS-IS." QEP MAKES NO WARRANTY(IES), EXPRESS OR IMPLIED (INCLUDING ANY AND ALL WARRANTY(IES) OF MERCHANTABILITY, SUITABILITY, FITNESS FOR A PARTICULAR PURPOSE, FUNCTION, DESIGN, QUALITY, CAPACITY, FREEDOM FROM DEFECTS AND GOOD AND WORKMANLIKE PERFORMANCE, as well as any warranty(ies) arising from course of dealing, course of performance and/or usage of trade) regarding any Item(s) or Service(s) provided by or at the direction of QEP, nor does QEP make any warranty against INTERFERENCE OR INFRINGEMENT, all of which warranties you to hereby waive. **NO DESCRIPTIONS, SPECIFICATIONS OR ADVERTISEMENTS CONSTITUTE REPRESENTATIONS OR WARRANTIES BY QEP. THERE ARE NO WARRANTIES WHICH EXTEND BEYOND THE DESCRIPTION ON THE FACE HEREOF.**

8. WARNINGS: THE RENTED ITEMS) CAN BE DANGEROUS AND SHOULD BE, FUELED, CHARGED, SERVICED, MAINTAINED, REPAIRED AND USED WITH EXTREME CARE, ONLY FOR THEIR INTENDED PURPOSE(S), AND ONLY BY PROPERLY QUALIFIED, INSTRUCTED, TRAINED, FAMILIARIZED, CERTIFIED, AND LICENSED, ADULT USERS, OPERATORS AND OCCUPANTS. YOU AGREE TO PROVIDE ALL APPLICABLE FAMILIARIZATION, TRAINING, INSTRUCTIONS AND WARNINGS TO ALL SUCH PARTIES, and ensure that each such Item is fueled, charged, used, operated and occupied safely and only: (a) for its intended purposes); (b) within its rated capacity; (c) unless otherwise specifically agreed by QEP, at the Site; and (d) otherwise in full compliance with this Contract, the Instructions and all applicable warranties and insurance policies, at all times: **ENGINES MAY EMIT TOXIC GAS FUMES; ALWAYS REFUEL IN AN OPEN AND WELL-VENTILATED AREA.**

9. INDEMNITY. TO THE MAXIMUM EXTENT PERMITTED UNDER APPLICABLE LAW, YOU: (A) ASSUME ALL RISK OF PERSONAL AND BODILY INJURY, ELECTRIC SHOCK, ILLNESS, PRODUCTS LIABILITY LOSS, THEFT, DAMAGE, AND CONTAMINATION OF, TO, AND/OR ARISING IN CONNECTION WITH, THE ITEM(S) AND/OR SERVICE(S) REFERENCED IN THIS CONTRACT, INCLUDING ALL LIABILITIES, CLAIMS, DAMAGES, LOSSES, COSTS AND EXPENSES ARISING FROM AND/OR IN CONNECTION WITH THE SELECTION, PROVISION, INSPECTION, DESIGN, MANUFACTURE, FUELING, CHARGING, USE, LOADING DEMONSTRATION, INSTALLATION, CLEANING, STORAGE, SERVICING, MAINTENANCE, REPAIR, DELIVERY AND/OR RETRIEVAL OF SUCH ITEM(S) AND/OR SERVICES, WHETHER OR NOT YOUR FAULT (COLLECTIVELY, "RISKS"). (B) RELEASE AND DISCHARGE, AND AGREE TO INDEMNIFY, DEFEND AND HOLD HARMLESS, QEP, its respective parents, affiliates and subsidiaries, and their respective owners, shareholders, members, managers, officers, directors, agents, employees, insurers, subrogees, representatives, successors and assigns (each, an "Indemnitee"), for, from and against all such RISKS, as well as all other liabilities, claims, damages, losses, costs and expenses arising from and/or in connection with the Item(s), this Contract, our negligence, and/or your breach of any one or more of the terms hereof; and except only as provided in § 6. **(C) WAIVE** all rights, remedies and defenses available under the Uniform Commercial Code, as well as all direct, indirect, incidental, consequential, general, and special damages, against each Indemnitee.

10. You agree to protect, properly maintain and care for each Rented Item at all times, keep the Item(s) safely and securely stored and locked when not in use, and return each Item to QEP on time, at the end of the Term, complete (with all original batteries, cords, attachments and peripherals), clean, free of contamination (including without limitation, asbestos, beryllium, silica and pathogens), and otherwise in good order, condition and repair, properly serviced, maintained, and if applicable, fully charged and/or full of the appropriate fuel, fluids and lubricants. If you fail to do so, in addition to any other amounts specified on P.1, you will promptly pay to QEP: (a) Rent at our highest incremental rate(s) until all such Item(s) have been returned or replaced as required; and (b) all costs and expenses we may incur in connection with such failure. **You shall not,** nor shall you permit anyone else to: (i) use any Rented Item while under the influence of any intoxicants) (**including without limitation CANNABIS, CANNABINOIDS, AND ALCOHOL, WHETHER OR NOT LEGAL**) or to abuse, misuse, overuse, conceal, store with any third party, repair, modify or damage any Rented Item(s); (ii) violate any Instruction, substance(s) or circumstance(s); (iv) disable, misuse or circumvent any safety equipment or device(s) in, on or with any Item(s); (v) take possession of or exercise control over any Rented Item(s), without our prior consent (in our sole and absolute discretion); or (vi) text, email or otherwise use any handheld communication device while operating any rented items).

11. You agree to maintain all insurance we may require, including: (a) liability and bodily injury insurance with minimum limits of \$1,000,000 per occurrence; (b) property damage/inland marine coverage for the full (new) replacement cost of the Item(s); (c) unlimited primary medical and personal injury protection; (d) workers' compensation insurance; (e) subject to Florida's No-Fault Insurance Law (if and to the extent applicable), unlimited personal injury (PIP), property protection (PPI), bodily injury and property damage, broad form collision, comprehensive, limited property damage ("Mini-Tort") liability, towing and residual liability insurance; and/or (f) contents insurance for the full new replacement cost of all contents of the Rented Item(s) (or any of them). Such policies shall, whenever possible: (i) name QEP as an additional insured and loss payee; (ii) waive subrogation against QEP; (iii) be primary and non-contributory; and (iv) include such other provisions (including deductibles) as we may require. You irrevocably appoint QEP as your agent and attorney-in-fact for the purposes of submitting and negotiating claims on all such policies.

12. If and only if, we have offered, and you have been paid for our **OPTIONAL QEP LOSS DAMAGE WAIVER POLICY ("LDW")** set forth on P.1 if available) in advance of the Term, you will have no liability to us for a portion of the repair/replacement cost for accidental physical damage or Rented Items as indicated in our "QEP Loss Damage Waive Policy," addendum, a copy of which you agree you have received, read and fully understand. In all event you will, remain fully liable for: (a) GPS and telematics systems, data, batteries, keys, glass, tires, tubes, tracks, booms, belts, chains, knobs, hoses; and (b) all loss of damage to: (i) Item(s) not covered by LDW; and (ii) Covered Item(s) lost or damaged during transportation and/or as a result of (A) any breach of this Contract by you or your agents, employees, sublessees, transferees, borrowers, successors, and/or assigns; (B) theft, mysterious disappearance, or other failure to timely return Covered Item(s) to us; and (C) negligence, misuses and/or abuse of Renter Item(s) (including without limitation, submerging, overturning, striking overhead objects, and overloading.) You may decline LDW ONLY if you provide the property/physical damage/inland marine insurance referenced in 11. Your insurance, if any, will continue to apply to will remain primary. You agree to assist us in recovering thereunder for all losses covered by LDW. **LDW IS NOT INSURANCE, NOR IS IT A WARRANTY.**

13. There are no third-party beneficiaries hereto other than the applicable Indemnitees. These Terms and Conditions apply to all Item(s) identified on P. 1, and **to all other Items** you obtain from us at any time (except only as we may otherwise agree). The terms of this Contract are severable. To the extent it is deemed invalid or unenforceable by any court of competent jurisdiction, such terms) will be deleted, and the remainder of this Contract will remain valid and in full force and effect. This Contract, and any pictures, videos, and/or addenda we provide, each of which is incorporated herein, represents) the entire agreement between you and QEP, superceding all other agreements and representations (including our website and advertising) and cannot otherwise be amended or extended except in a writing signed by QEP. Lessee agrees to pay all taxes (including all sales, use, fuel and other taxes), fines, fees, assessments and other charges, including a rental tax of 4.5% of the total rental cost provided in this Contract, required under Florida law. See FL LEGIS 2023-157, 2023 Fla Sess. Law. Serv. Ch. 2023-157 (H.B. 7083) for details. In the event any legal action is commenced in connection with this Contract, the prevailing party will be entitled to recover its costs and expenses associated therewith (including without limitation, attorneys' fees, and expenses) from the non-prevailing party. To the maximum extent permitted under applicable law, you grant to QEP a lien on all real and personal property: (a) placed in or on; and/or (b) improved with, any Rented Item(s). We may, without notice or liability to you, monitor and/or inspect, in person and/or electronically (including via Telematics/GPS systems) any Rented Item(s) at any time You consent thereto and agree that all information thereby obtained will be QEP's property.

14. If any performance required of QEP shall be delayed, impaired or made more costly as a result of any act or omission of/b you, any Other Provider(s) or any "Act of God," event of force majeure (including fire, flood storm, earthquake, tsunami, slide, subsidence, collapse, riot, war, violence or threat thereof, theft, terrorism, cyber-attack, supplier delay, strike, shutdown, power surge or outage, epidemic, pandemic and governmental and regulatory actions) or other events, facts or circumstances beyond our reasonable control, we will be excused from such performance. You waive all statutes of limitations regarding our rights and remedies. All amounts due hereunder but not timely paid will bear interest at the lessor 18% per annum of highest rate permitted under applicable law. Any item(s) sold to you ("Sale Item(s)," as provided on P.1 as provided "AS-IS" and **"WITH ALL FAULTS,"** and are subject to the terms of this Contract (modified to address sales); provided that our obligations under 6 shall expire and terminate 3 day after the date of purchase.

15. You authorize us to charge all amounts coming due hereunder to any debit and/or credit card(s) you provide (up to 150% of the new replacement cost of the Item(s)). You agree to pay us the maximum lawful charge for any check you write which is returned unpaid. **Our maximum liability in connection with this Contract is limited to the amount(s) actually paid by you and received by us hereunder for the Item(s) identified on P.1.** Neither our exercise, nor our failure or delay in the exercise, of any rights or remedies insurers, subrogees, successors and permitted assigns. Digital, electronic, photocopied, and facsimiled signatures and initials appearing on this Contract will be deemed originals.

16. This is a "net" rental. Your duties hereunder are unconditional. If you or any guarantor shall: (a) fail to fully and timely honor, pay, perform, or comply with this Contract and/or any of your obligations arising hereunder or in connection herewith; (b) provide any incorrect or misleading information to us; (c) become insolvent; or (d) die or cease conducting business, or if any Rented Item(s) shall be lost or damaged, you will be in **DEFAULT** under this Contract, whereupon, QEP may with or without legal process or notice (and without liability to you or any guarantor), to the maximum extent permitted under applicable law: (i) cancel the Term and/or the subject Contract(s) (and/or your rights to use and possess the Rented Item(s)); (ii) seek relief from stay; (iii) recover, empty, lock, restrict and/or disable any Item(s) without being guilty of breach, trespass or wrongful interference or liable for any injuries or property damage, including without limitation, any and all damage to crops, flora and/or fauna (for which you will indemnify, defend and hold harmless each Indemnitee); (iv) perform your obligations hereunder on your behalf, without being obligated to do so; (v) purchase replacement item(s); (vi) recover from you and/or any guarantor our associated damages, losses, costs and expenses (including without limitation, Rent for the entire scheduled Term, overtime, loss of use, interest, repossession costs, and collection costs); and/or (vii) pursue any one or more other rights and/or remedies available in connection (therewithin, all of which shall be cumulative.

17. This Contract shall be governed by and enforceable under the laws of Florida. Disputes arising in connection with this Contract shall, at QEP's option, be submitted to binding **ARBITRATION** in accordance with the Rules of the American Arbitration Association before a single arbitrator and in a location selected by QEP. Judgement on the arbitrator's award shall be final and binding and may be entered in any court of competent jurisdiction. **Proper venue for all other civil legal actions commenced in connection herewith shall lie solely and exclusively in the federal, state, and local courts located in or nearest to Columbia County, FL.** You consent and submit thereto and waive all claims that such venue lies in an inconvenient forum. YOU HEREBY WAIVE: **(A) YOUR RIGHT(S), IF ANY, TO PARTICIPATE IN ANY CLASS, COLLECTIVE, OR OTHER JOINT ACTION AGAINST QEP; AND (B) YOUR RIGHT TO TRAIL BY JURY.**